

Farjand Ali v. State of U.P. and others

High Court of Judicature at Allahabad · Division Bench · 4 January 2019 · WRIT - C No. 42749 of 2018 · **Writ disposed; petitioner to appear before Executive Engineer; representation against recovery to be decided in accordance with law within 15 days.**

HEADNOTE

On a writ seeking quashing of a KESCO recovery of Rs.18,02,329, the Division Bench did not examine the demand on merits. An earlier writ had already relegated the consumer to Clause 6.5 of the Electricity Supply Code, 2005. Absence of an official receiving did not excuse the consumer from proving that the Clause 6.5 application was filed; it should have been sent by registered post. The petitioner was directed to appear before the Executive Engineer with a representation against the demand, to be decided in accordance with law within 15 days.

FACTUAL SUMMARY

Farjand Ali sought quashing of a KESCO recovery notice dated 17 September 2018 for Rs.18,02,329. An earlier writ (Writ-C No. 10330 of 2017) had been disposed of on 7 March 2017 with liberty to invoke Clause 6.5 of the Electricity Supply Code, 2005 and a direction to the Executive Engineer to consider his case. He claimed he applied on 12 April 2017 but was given no receiving by the authority.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection

HOLDING

Even if the authority gave no receiving of a Clause 6.5 application, the consumer ought to have sent it by registered post. The writ against KESCO's recovery notice dated 17.09.2018 is disposed of without examining the demand: the petitioner shall appear before the Executive Engineer, KESCO Urban Distribution Division, Kanpur Nagar on 11.01.2019 with a certified copy of this order and his representation, which the Executive Engineer shall consider and decide in accordance with law within 15 days. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE RECOVERY OF RS.18,02,329 UNDER THE NOTICE DATED 17.09.2018 IS LEGALLY SUSTAINABLE

¶ 1

NOT DECIDED — WHETHER THE PETITIONER IN FACT FILED A CLAUSE 6.5 APPLICATION ON 12.04.2017

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